

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3270

By: Archer and **Humphrey** of the
House

and

Murdock of the Senate

11 COMMITTEE SUBSTITUTE

12 An Act relating to farmed cervidae; amending 2 O.S.
13 2021, Sections 6-507, as amended by Section 1,
14 Chapter 47, O.S.L. 2023 (2 O.S. Supp. 2025, Section
15 6-507) and Section 1, Chapter 271, O.S.L. 2024 (2
16 O.S. Supp. 2025, Section 6-520), which relate to the
17 Oklahoma Farmed Cervidae Act; exempting certain
18 actions from violating act; allowing bred deer with
19 certain genetic resistance to be released into native
20 cervidae populations; changing department that issues
21 permit from the Oklahoma Department of Wildlife
22 Conservation to the Oklahoma Department of
23 Agriculture, Food, and Forestry; and declaring an
24 emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 2 O.S. 2021, Section 6-507, as
amended by Section 1, Chapter 47, O.S.L. 2023 (2 O.S. Supp. 2025,
Section 6-507), is amended to read as follows:

1 Section 6-507. It shall be unlawful and a violation of the
2 Oklahoma Farmed Cervidae Act for any person:

3 1. To refuse an inspection authorized by the Oklahoma Farmed
4 Cervidae Act;

5 2. To commingle or integrate any native cervidae into a farmed
6 cervidae herd;

7 3. To intentionally commingle or integrate any farmed cervidae
8 with native cervidae, except deer that meet the specifications of
9 the Chronic Wasting Disease Genetic Improvement Act as provided in
10 Section 6-520 of this title;

11 4. To fail to maintain records as required by law;

12 5. To fail to maintain fencing as required by law;

13 6. To fail to pay any fee, fine, or penalty as required and
14 established pursuant to the Oklahoma Farmed Cervidae Act;

15 7. To fail to comply with any State Board of Agriculture order;
16 or

17 8. To violate any provision of the Oklahoma Farmed Cervidae
18 Act.

19 SECTION 2. AMENDATORY Section 1, Chapter 271, O.S.L.
20 2024 (2 O.S. Supp. 2025, Section 6-520), is amended to read as
21 follows:

22 Section 6-520. A. This section shall be known and may be cited
23 as the "Chronic Wasting Disease Genetic Improvement Act".
24

1 B. No later than November 1, 2024, the Oklahoma Department of
2 Agriculture, Food, and Forestry shall establish a pilot program to
3 enhance the genetic durability of Oklahoma deer against chronic
4 wasting disease. Such pilot program shall include, but not be
5 limited to, the following program characteristics:

6 1. The Department of Wildlife Conservation will begin
7 collecting DNA samples to establish a baseline of average genetic
8 codon markers and genomic breeding values for native, free-ranging
9 Oklahoma white-tailed deer. For establishing testing locations in
10 the state, the Department shall use Interstates 35 and 40 as
11 dividing lines or established Department deer management zones as
12 published in the current hunting regulations guide;

13 2. Limit participation in the program to native white-tailed
14 deer, born and raised in Oklahoma with genetic resistance breeding,
15 including the SS allele at codon 96, and that surpass the genomic
16 estimated breeding value cutoff established for the program by the
17 Oklahoma Department of Agriculture, Food, and Forestry; and

18 3. Beginning in 2026, during the months of February and March
19 and through the fifteenth of April, bred female and male deer that
20 meet the specification of paragraph 2 of this subsection may be
21 released into native cervidae populations.

22 C. The Oklahoma Department of Agriculture, Food, and Forestry
23 and the Department of Wildlife Conservation may promulgate rules as
24 needed to implement the provisions of this act.

1 D. ~~The Department of Wildlife Conservation~~ Oklahoma Department
2 of Agriculture, Food, and Forestry may charge a one-time permit fee,
3 which shall not exceed Five Hundred Dollars (\$500.00), for citizens
4 purchasing deer as a result of criteria established in the pilot
5 program.

6 SECTION 3. It being immediately necessary for the preservation
7 of the public peace, health or safety, an emergency is hereby
8 declared to exist, by reason whereof this act shall take effect and
9 be in full force from and after its passage and approval.

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11 COMMITTEE REPORT BY: COMMITTEE ON ENERGY AND NATURAL RESOURCES
12 OVERSIGHT, dated 02/25/2026 - DO PASS, As Amended and Coauthored.
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